

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Murray	Team: Team # 2	CCRB Case #: 201211890	☒ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 08/02/2012 4:20 PM, Thursday, 08/23/2012 12:00 AM, Tuesday, 09/04/2012 12:00 AM, Tuesday, 09/25/2012 12:00 AM	Location of Incident: § 87(2)(b)	Precinct: 75	18 Mo. SOL 2/2/2014	EO SOL 2/2/2014	
Date/Time CV Reported Thu, 09/13/2012 1:52 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 09/13/2012 1:52 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			NARCBBN
2. POM John Slavinsky	11740	939476	NARCBBN
3. SGT Michael White	04207	907749	NARCBBN
4. DT3 Jennifer Lavelle	00235	933921	NARCBBN
5. LCD Patrick Ryan	00000	904977	NARCBBN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM James Famiano	07548	936568	NARCBBN
2. DT3 Ronald Reynolds	05746	937368	NARCBBN
3. DT3 Dennis Friendly	29185	930185	NARCBBN
4. POM Charles Ingrassia	11159	938694	NARCBBN
5. DT3 Steve Lafortune	02570	928609	NARCBBN
6. DT3 Hugo Ortega	03534	935438	NARCBBN
7. DT3 Sekou Bourne	05941	924971	NARCBBN
8. DT3 Emrah Ates	00257	942967	NARCBBN
9. DT3 Joseph Fernandez	01815	940098	NARCBBN
10. POM Edward Mejia	00592	944803	NARCBBN
11. DT3 Henry Serrano	04152	918317	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A.SGT Michael White	Abuse: On August 2, 2012, September 4, 2012, and September 25, 2012, Sgt. Michael White participated in the entry and search of § 87(2)(b) in Brooklyn.	§ 87(2)(b)
B.LCD Patrick Ryan	Abuse: On August 23, 2012, Lt. Patrick Ryan participated in the entry and search of § 87(2)(b) in Brooklyn.	§ 87(2)(b)
C. Officers	Abuse: On August 2, 2012, August 23, 2012, September 4, 2012, and September 25, 2012, officers refused to provide their names and shield numbers to § 87(2)(b) and § 87(2)(b).	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
D.DT3 Jennifer Lavelle	Abuse: On August 23, 2012, Det. Jennifer Lavelle damaged § 87(2)(b) s property.	
E.DT3 Jennifer Lavelle	Force: On August 23, 2012, Det. Jennifer Lavelle used physical force against § 87(2)(b)	
F.DT3 Jennifer Lavelle	Abuse: On September 4, 2012, Det. Jennifer Lavelle strip-searched § 87(2)(b)	
G.POM John Slavinsky	Abuse: On September 25, 2012, PO John Slavinsky damaged § 87(2)(b) s property.	

Case Summary

On September 13, 2012, § 87(2)(b) filed this complaint with the CCRB via phone (Enc. B1 – B2). This same day, she filed a duplicate of this complaint with the Internal Affairs Bureau (IAB) via phone, generating IAB log 12-49788 (Enc. C1).

On August 2, 2012, August 23, 2012, September 4, 2012, and September 23, 2012, officers arrived at § 87(2)(b) in Brooklyn. The following allegations resulted:

- **Allegation A: Abuse of Authority – On August 2, 2012, September 4, 2012, and September 25, 2012, Sgt. Michael White participated in the entry and search of § 87(2)(b) in Brooklyn.**
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation B: Abuse of Authority – On August 23, 2012, Lt. Patrick Ryan participated in the entry and search of § 87(2)(b) in Brooklyn.**
§ 87(2)(g)
§ 87(2)(g)
- **Allegation C: Abuse of Authority – On August 2, 2012, August 23, 2012, September 4, 2012, and September 25, 2012, officers refused to provide their names and shield numbers to § 87(2)(b)**
§ 87(2)(b)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation D: Abuse of Authority – On August 23, 2012, Det. Jennifer Lavelle damaged § 87(2)(b)'s property.**
- **Allegation F: Abuse of Authority – On September 4, 2012, Det. Jennifer Lavelle strip-searched § 87(2)(b)**
- **Allegation G: Abuse of Authority – On September 25, 2012, PO John Slavinsky damaged § 87(2)(b)'s property.**
§ 87(2)(b)
§ 87(2)(g)
§ 87(2)(g)
- **Allegation E: Force – On August 23, 2012, Det. Jennifer Lavelle used physical force against § 87(2)(b)**
§ 87(2)(g)
§ 87(2)(g)

This case was originally assigned to Investigator Michelle Woodling. Upon her resignation on June 12, 2013, this case was reassigned to Investigator Diana Murray.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of this incident. She is a 5'1" tall, 94-pound black female with black hair and brown eyes.

Personal Injury Photos

On September 27, 2012, Inv. Woodling photographed § 87(2)(b)'s injured right ankle, which was wrapped in an ace bandage at the time.

Statements to Medical Personnel

On § 87(2)(b), § 87(2)(b) informed § 87(2)(b) personnel that she slipped last week and has since had significant pain in her right foot and right ankle.

CCRB Statement

§ 87(2)(b) was interviewed at the CCRB on September 27, 2012 (Enc. F1 – F9). § 87(2)(b) was also contacted via telephone on September 17, 2012 (Enc. E1), February 26, 2013 (Enc. G1), and June 19, 2013 (Enc. G2) for additional information. § 87(2)(g).

August 2, 2012

§ 87(2)(b) alleged that the first incident occurred on August 2, 2012, between 12 p.m. and 2 p.m., however, the investigation determined that this incident occurred at 6:20 p.m. § 87(2)(b) was inside of her apartment, located at § 87(2)(b) in Brooklyn, when her friend, § 87(2)(b) § 87(2)(b) exited the apartment to run an errand. Minutes later, four plainclothes officers knocked on her door and subsequently followed § 87(2)(b) into the apartment without permission.

Det. Jennifer Lavelle, who was identified via investigation and described by § 87(2)(b) as a 5'11" tall, white female, was present. Det. Ronald Reynolds, who was identified via investigation and described by § 87(2)(b) as a 5'11" to 6'0" tall white male, was present. Sgt. Michael White, who was identified via investigation and described as a 5'10" tall black male was present. Det. Dennis Friendly, a 5'10" tall, black male, was also present. All of the officers appeared to be 30 to 40 years old.

The officers informed § 87(2)(b) that the house was abandoned and she was not allowed to be inside of it. § 87(2)(b) acknowledged that her apartment is part of Section 8 housing and the building has had many violations. However, the house has not been declared abandoned, § 87(2)(b) has a current lease with the location, and she has lived there for fourteen years. There are numbers on the front of her house, but there are no longer numbers on her actual apartment door. § 87(2)(b) and her son, § 87(2)(b) are the only tenants who live in the building.

Det. Reynolds and Sgt. White entered and searched both bedrooms in the apartment. § 87(2)(b) did not specifically see where they searched, and was unable to articulate how she knew the officers searched the bedrooms. § 87(2)(b) believes that Det. Friendly searched the kitchen, as she heard the cabinets opening and closing. As the search was occurring, Det. Lavelle was frisking and searching § 87(2)(b) before placing her in handcuffs. § 87(2)(b) was arrested for § 87(2)(b).

After searching for approximately three to four minutes, the officers informed § 87(2)(b) that they had recovered cocaine residue in the bedroom in which § 87(2)(b) had been in prior to leaving. When § 87(2)(b) returned from running an errand, officers also arrested him.

August 23, 2012

§ 87(2)(b) indicated that the second incident occurred on August 23, 2012, between 12:30 p.m. and 2 p.m. The investigation determined that the incident occurred at 2:50 p.m. § 87(2)(b) was in her apartment alone when she heard three loud booms. When she emerged from her room, § 87(2)(b) noticed that Det. Lavelle had kicked in the basement door and four plainclothes officers were entering her building from the basement. Det. Friendly and Det. Lavelle, from the previous incident were present. § 87(2)(b) § 87(2)(b) alleged that Sgt. White was present; however, the investigation determined that Sgt. White was not present for this incident, and it was likely Det. Sekou Bourne of Narcotics Borough Brooklyn North who § 87(2)(b) observed (see Officer Identification Section). Lt. Patrick Ryan, who was identified via

investigation and described by § 87(2)(b) as a white male, was also present, as was a second white male, PO6, who remains unidentified.

Again, the officers informed § 87(2)(b) the building was abandoned and that she could not stay there. The officers asked § 87(2)(b) to bring everyone out into the hallway, but she stated that she was the only person present. Three officers entered § 87(2)(b)'s bedroom, where she believes they conducted a search. She did not see them conducting a search, as she was being held in police custody in the living room, but heard the sound of closet doors opening. Sgt. White exited the room with two drinking straws he claimed to contain cocaine residue. An officer who § 87(2)(b) could not describe searched through her kitchen's garbage and discovered a small alcohol bottle with cocaine residue on it.

§ 87(2)(b) was unable to find the key to the front gate, so the officers and § 87(2)(b) exited the location through the basement from where they had entered. She noted that the stairs that led to her apartment door are dilapidated and generally unsafe. During her phone statement, § 87(2)(b) mentioned that she was walking down her stairs when she twisted her leg, but denied receiving medical treatment for her injuries. During her CCRB statement, § 87(2)(b) alleged that, while handcuffed, she inadvertently slipped down a couple steps, injuring her ankle. On February 25, 2013, and June 19, 2013, § 87(2)(b) alleged that Det. Lavelle pushed her down the stairs on this day, resulting in her injured ankle. Upon filing this complaint with IAB, § 87(2)(b) alleged that she was dragged down the stairs. As a result of the interaction with the stairs, § 87(2)(b)'s ankle was sprained and it exacerbated her pre-existing back injury. She was treated at § 87(2)(b).

September 4, 2012

§ 87(2)(b) alleged a third incident with the same officers occurred on September 4, 2012, between 4:30 p.m. and 6 p.m. The investigation determined the incident occurred at 7 p.m. § 87(2)(b) was in her apartment with her son, § 87(2)(b) and § 87(2)(b). § 87(2)(b) exited the apartment and immediately reentered with five plainclothes officers behind him. Sgt. White was leading the officers' way. § 87(2)(b) contended that Det. Friendly was present; however, the investigation determined that she likely observed Det. Steve Lafortune, identified via investigation and described as a 5'10" tall black male, who was present at the location at the time of this incident. PO James Famiano, identified via investigation and described as a white male, was present. § 87(2)(b) was unable to physically describe the remaining officers; however, the investigation determined that Det. Emrah Ates and Det. Hugo Ortega were also present.

The officers entered the apartment and informed § 87(2)(b) that she could not be at the location and that the house was abandoned. PO Famiano, Det. Lafortune, and a third officer entered and searched § 87(2)(b)'s bedroom, despite her protests. § 87(2)(b) was unable to articulate where specifically the officers searched. An officer who § 87(2)(b) did not see frisked § 87(2)(b) and searched through his cigarette box, yielding a crack pipe that § 87(2)(b) admitted was his. § 87(2)(b) was also placed under arrest for drugs or paraphernalia the officers discovered in her room. § 87(2)(b) was arrested for having a small bag of crack cocaine.

Prior to being transported to the stationhouse, § 87(2)(b) asked if she could change her clothes, and the officers acquiesced. In order to let her do so, an officer searched all four pockets of her jeans and then asked her to lift her shirt and shake out her bra. On June 19, 2013, during a phone conversation, § 87(2)(b) identified Det. Lavelle as the officer who made her shake out her shirt; however, the investigation determined that neither Det. Lavelle, nor any other female officer, was present at § 87(2)(b) at the time of this incident. § 87(2)(b)'s brassiere and breasts were not exposed when she pulled the clothing away from her body. During this conversation, § 87(2)(b) added that Det. Lavelle instructed her to pull her pants to her mid-thigh level in front of all of the officers. § 87(2)(b) followed Det. Lavelle's instructions and her undergarments were exposed, but her bare skin was not. § 87(2)(b) did not make this allegation during her CCRB statement.

September 25, 2012

§ 87(2)(b) alleged that the final incident involving police occurred on September 25, 2012, between 7:40 p.m. and 8 p.m. The investigation determined that the incident occurred at 8:45 p.m. § 87(2)(b) was in her bedroom when § 87(2)(b) informed her that officers were knocking at the front door. § 87(2)(b) went to her apartment door with her keys and the paperwork that verifies she is allowed to be at the location. She spoke to Sgt. White, who was standing at the gate of the house, and displayed the paperwork to him. Sgt. White stated that the paperwork was invalid, and § 87(2)(b) was still not allowed to be at the location. § 87(2)(b) allowed Sgt. White to come through the gate to the front of the house. § 87(2)(b) heard a loud noise, and turned to see that four officers had broken down the recently repaired basement door. § 87(2)(b)'s bedroom door was ajar, and the officers walked into his room. § 87(2)(b) then stated that the door was closed, but PO John Slavinsky, identified via investigation and described as a tall, muscular, white male, with short brown or black hair, kicked in the door and squeezed through the opening. The four officers who were in the house then grabbed § 87(2)(b)'s keys and unlocked the gate so Sgt. White could enter the apartment. Previously in her CCRB statement, § 87(2)(b) alleged that she personally let Sgt. White past the gate.

Both § 87(2)(b) and § 87(2)(b) were arrested for § 87(2)(b), though § 87(2)(b) does not know the context of the evidence or where specifically the search occurred.

During each of the four interactions, § 87(2)(b) alleged that she individually asked every single officer for their name and shield number. All four times, each of the officers turned their badges away from § 87(2)(b) and refused to provide their names. § 87(2)(b) was unable to describe the circumstances of each request, and during her CCRB interview, she merely exclaimed that she asked “every last one of them” declined their information both verbally and physically, after she asked them “at least once.” During all four incidents, § 87(2)(b) also asked for a search warrant, but the officers told her she would see the search warrant at the precinct. § 87(2)(b) was never furnished with a copy of the warrant. Upon filing her CCRB complaint, § 87(2)(b) stated that her door was kicked in on all of the incident dates, but at the time of her CCRB interview, she only alleged that it was kicked in two times. § 87(2)(b) believes that her landlord, § 87(2)(b) is reporting her to the officers in an attempt to get her evicted.

Victim: § 87(2)(b)

- § 87(2)(b) was § 87(2)(b) at the time of this incident. He is a 5'7" tall, 182-pound black male with brown hair and brown eyes.

CCRB Statement

On October 15, 2012, § 87(2)(b) was interviewed at the CCRB (Enc. H1 – H5). § 87(2)(g)

September 4, 2012

On September 4, 2012, at approximately 7 p.m., § 87(2)(b) was exiting § 87(2)(b)'s first floor apartment when he heard officers knocking on the window of the apartment and the outer door of the building. As § 87(2)(b) made his way into the common area of the building, an officer kicked in the door, making it fall off of its hinges. During § 87(2)(b)'s statement, she did not allege an officer damaged the door on this day. Two plainclothes officers, Sgt. White and PO Famiano, entered the building.

Pursuant to the officers' inquiries, § 87(2)(b) informed them that only § 87(2)(b) and he were in the apartment. § 87(2)(b) remained in the living room while the officers entered the apartment and walked into § 87(2)(b)'s room. They brought § 87(2)(b) and an unidentified friend out of § 87(2)(b)'s room and asked § 87(2)(b) why he had not told them about § 87(2)(b)'s friend. § 87(2)(b) responded that he did not know § 87(2)(b) had a friend over.

Sgt. White asked § 87(2)(b) why he was flailing his arms. Sgt. White then frisked § 87(2)(b) and asked him to empty his pockets. All three individuals were arrested and taken to the porch. While in front of the apartment, officers searched the apartment, but § 87(2)(b) was unable to see where they searched.

The officers informed them they were being arrested for trespassing, but upon receiving the arrest paperwork, they determined they were arrested for § 87(2)(b). § 87(2)(b) asked all of the officers for their names, shield numbers, and to view a warrant, but he was denied all requests.

September 25, 2012

On September 25, 2012, at 8:45 p.m., § 87(2)(b) was in his bedroom when he observed strobe lights outside of his window. He looked out to observe officers approaching the apartment building from the front and back. § 87(2)(b) and § 87(2)(b) went to the front door after hearing an officer knock on the gated covering. § 87(2)(b) opened the door, but not the gated portion, and declined the officers' requests to enter the apartment.

Plainclothes officers who § 87(2)(b) did not see kicked in the basement door and climbed the steps so that they were in the hallway of the first floor common area. Two plainclothes Hispanic male officers took § 87(2)(b)'s keys from her and opened the door to allow Sgt. White to enter. The officers then broke down a second door, the door leading to § 87(2)(b)'s room. An officer who § 87(2)(b) could not describe entered his room and informed § 87(2)(b) that he was trespassing. § 87(2)(b) did not observe an officer search § 87(2)(b) nor did he hear an officer ask § 87(2)(b) to shake out her bra. § 87(2)(b) asked Det. Lavelle who his arresting officer would be, and Det. Lavelle informed him that he would find out at the precinct.

Witness: § 87(2)(b) § 87(2)(b)

- § 87(2)(b) § 87(2)(b) is a black male. He is a friend of § 87(2)(b)'s and § 87(2)(b)'s, and was identified by § 87(2)(b).

Phone Statement

§ 87(2)(b) § 87(2)(b) provided a phone statement to the CCRB on September 17, 2012, but did not provide a verified statement (Enc. I1).

On August 2, 2012, § 87(2)(b) § 87(2)(b) ran an errand and returned to § 87(2)(b) in Brooklyn, to find that § 87(2)(b) had already been handcuffed by officers. § 87(2)(b) § 87(2)(b) did not enter § 87(2)(b) and did not see the officers enter § 87(2)(b)'s apartment. § 87(2)(b) § 87(2)(b) stood by the curb in front of the building and four plainclothes officers subsequently came outside and arrested § 87(2)(b) § 87(2)(b).

On September 4, 2012, § 87(2)(b) § 87(2)(b) was inside of § 87(2)(b)'s apartment when four officers entered and arrested § 87(2)(b) § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b). § 87(2)(b) did not hear them knock prior to entering.

Attempts to Contact Civilians

§ 87(2)(b)
On February 6, 2013, contact was established with § 87(2)(b). According to the NYC Department of Buildings website and NYC GovMaps, § 87(2)(b) § 87(2)(b) is the current owner of § 87(2)(b) in Brooklyn (Enc. Z1 – Z2; Z6 – Z16). § 87(2)(b) § 87(2)(b) stated that he has not owned the property in 8 to 10 years, but acknowledged that § 87(2)(b) had a lease with him years ago. § 87(2)(b) § 87(2)(b) tried to get § 87(2)(b) out of the building when he was the owner because § 87(2)(b) was engaging in drug activity inside of the apartment. § 87(2)(b) § 87(2)(b) was unaware of any allegations of police misconduct occurring at § 87(2)(b) in Brooklyn.

NYPD Statements:

Subject Officer: SERGEANT MICHAEL WHITE

- *Sgt. White was § 87(2)(b) old at the time of this incident. He is a 6'1" tall, 210-pound, bald black male with brown eyes.*
- *Sgt. White worked from 3:25 p.m. on August 2, 2012, to 3 a.m. on August 3, 2012, as a supervisor for Narcotics Borough Brooklyn North (NBBN) Module 1. He was working in plainclothes, assigned to unmarked van #§ 87(2)(b) and was unable to recall his partners for that day.*
- *Sgt. White did not work on August 23, 2012.*
- *On September 4, 2012, Sgt. White worked from 2:25 p.m. to 11 p.m. as a NBBN supervisor. He was in plainclothes, assigned to unmarked van #§ 87(2)(b) and was working with PO James Famiano.*
- *On September 25, 2012, Sgt. White worked from 2:25 p.m. to 11 p.m. as a NBBN supervisor. He was in plainclothes, assigned to unmarked van #§ 87(2)(b) and was working with Det. Dennis Friendly and PO John Slavinsky.*

Memo Book Entries

Sgt. White had memo book entries for the three incidents in which he was present (Enc. J1 – J8).

On August 2, 2012, at 6:20 p.m., § 87(2)(b) was placed under arrest at § 87(2)(b) in Brooklyn, for § 87(2)(b). At 6:30 p.m., § 87(2)(b) § 87(2)(b) was placed under arrest at § 87(2)(b) in Brooklyn, for § 87(2)(b) substance.

On September 4, 2012, at 7 p.m., § 87(2)(b) and § 87(2)(b) § 87(2)(b) were placed under arrest inside of § 87(2)(b) in Brooklyn.

On September 25, 2012, at 8:45 p.m., § 87(2)(b) and § 87(2)(b) were placed under arrest in side of § 87(2)(b) in Brooklyn.

CCRB Statement

Sgt. White was interviewed at the CCRB on June 27, 2013 (Enc. K1 – K5).

Sgt. White stated that he has arrested § 87(2)(b) on so many occasions that the details of each encounter are difficult to distinguish.

All interactions with § 87(2)(b) have occurred at § 87(2)(b) in Brooklyn, which is a two story building consisting of a common area, basement, and two separate living quarters among the three floors. The house is surrounded by a broken steel gate that does not lock. On all occasions Sgt. White has visited § 87(2)(b) the front door and some of the windows, which were formerly boarded up, have been damaged or knocked down. The second floor of § 87(2)(b) is unfurnished, full of garbage, feces and urine. Each of § 87(2)(b)'s arrests has taken place in the common area of § 87(2)(b) on the § 87(2)(b) floor.

Sgt. White contends that the building is abandoned and no individual is permitted to be on the premises, but he has not personally conducted database searches of the location, as Det. Ronald Reynolds is the case officer for this location. Sgt. White believes the landlord of the location informed Det. Reynolds that no individual is permitted to be in the building.

In addition to being abandoned, § 87(2)(b) is a "kite location," or a location that has been flagged for NYPD monitoring due to the flux of complaints regarding narcotics usage and sales that occur in the building. Numerous neighbors have complained about individuals hanging out in the hallways and smoking drugs at § 87(2)(b). Sgt. White is uncertain when the location became a kite location, as it commonly rotates in and out of the officers' tactical plans every couple of months. In the past, search warrants have been executed for § 87(2)(b) but Sgt. White did not partake in the search warrants, and they were not issued for the incident dates in question.

On August 2, 2012, at 6:20 p.m., Sgt. White responded to § 87(2)(b) in Brooklyn, to check on an ongoing kite complaint. While standing on the stoop of the building, he observed that the front door had been knocked in and he could observe the entire common area hallway. He observed § 87(2)(b) in the common area hallway smoking a crack pipe. Det. Reynolds entered the building, not the

apartment, and placed § 87(2)(b) under arrest for smoking crack. Sgt. White remained at the cusp of the building's doorway and observed their interaction.

Sgt. White did not enter any apartment inside of the building, and he did not see any other officer do so. A search of the premises did not take place. The arrest reports for § 87(2)(b) and § 87(2)(b) were presented to Sgt. White, failing to aid in his recollection of additional details from this incident date. He was unable to recall the context of § 87(2)(b) arrest, and denied following § 87(2)(b) into the private apartment or seeing another officer do so.

Sgt. White was unable to recall which other officers were at the location on this day. Sgt. White did not recall § 87(2)(b) asking for any officers' name or shield number, and he noted that § 87(2)(b) knows all of their names due to prior interactions. Sgt. White never refused to provide his name or shield number, nor did he flip his neck badge away from § 87(2)(b)'s vantage point. Sgt. White did not hear any officer refuse to provide their name or shield number to § 87(2)(b).

On August 23, 2012, Sgt. White was on vacation and did not have any interaction with § 87(2)(b).

Sgt. White was unable to recall any notable occurrences from the September 4, 2012, incident date. Upon viewing the tactical plan, he noted that § 87(2)(b) was on the list of places to be monitored, though this did not aid in his recollection of the incident. Sgt. White was unable to recall the occurrences leading to the arrests of § 87(2)(b) or § 87(2)(b). He does not recall where he initially observed the three arrestees.

Sgt. White denied following a male civilian into § 87(2)(b)'s apartment to gain entry on this day. Sgt. White did not recall entering the actual apartment or conducting a search of the apartment, and did not see any other officer do so. Sgt. White noted that § 87(2)(b) does not loiter in the private apartments, which are commonly sealed off, but rather in the common hallway of the building. He does not recall from where the controlled substance was recovered, or which officer recovered it.

Given that § 87(2)(b) is a female, Sgt. White commonly transports her to the 75th Precinct stationhouse without first conducting a search incident to a lawful arrest. On this day, he did not recall Det. Lavelle being present at the location, and speculated that § 87(2)(b) was likely only searched at the stationhouse. Sgt. White did not hear any officer ask § 87(2)(b) to shake out her shirt, or pull down her pants, and he did not see § 87(2)(b) do either on this day. On this day, Sgt. White did not observe, partake, or authorize any form of strip-search at § 87(2)(b).

Sgt. White did not recall § 87(2)(b) asking for any officer's name or shield number on this day. Sgt. White and his partners did not flip their shields away from § 87(2)(b) or verbally refuse to provide their information.

Sgt. White does not recall the September 25, 2012 incident, reiterating that they "all became the same incident." After viewing police documents, Sgt. White speculated that PO Steve Lafortune and Det. § 87(2)(b) Serrano were likely present, as they were assigned to the prisoner van, though he was uncertain.

Sgt. White does not recall where he initially observed § 87(2)(b) on this date, speculating that she was likely in the hallway and officers observed her while performing routine checks of the common areas in the kite location. Sgt. White does not recall knocking on the door to get § 87(2)(b) to come outside of the apartment on this day, nor did he see any other officer do so. Sgt. White did not recall entering the apartment. He denied ever entering the location from the basement door, and is unaware of other officers doing so. Sgt. White did not recall § 87(2)(b) presenting papers to him on this day, seeing an officer confiscate her keys to allow Sgt. White entry, or seeing an officer enter a bedroom within the apartment.

Sgt. White did not recall any officer kicking down an exterior and interior door, and noted that

almost every time they arrive, the doors and windows are already broken down. § 87(2)(b) did not complain of property damage on this day, and Sgt. White did not see any property damage. No officer searched the location, including cabinets or garbage. Sgt. White did not recall § 87(2)(b) requesting

officers' identification on this day, and no officer, including Sgt. White, refused to provide their information.

Subject Officer: LT. PATRICK RYAN

- *Lt. Ryan was § 87(2)(b) old at the time of this incident. He is a 5'9" tall, 180-pound white male with brown hair and brown eyes.*
- *On August 23, 2012, Lt. Ryan worked from 10:25 a.m. to 7 p.m. doing enforcement with team 75-01, including Det. Lavelle and Det. Friendly. They were assigned to an unmarked black Nissan Altima and dressed in plainclothes.*
- *Lt. Ryan was not present for the August 2, 2012, September 4, 2012, or September 25, 2012, incident dates.*

Memo Book

On August 23, 2012, at 2:35 p.m., Lt. Ryan was en route to § 87(2)(b) in Brooklyn. At 2:45 p.m., he arrived at the location, kite # § 87(2)(b). At 2:50 p.m., § 87(2)(b) was placed under arrest for § 87(2)(b) inside of § 87(2)(b) (Enc. L1 – L7).

CCRB Statement

Lt. Ryan was interviewed at the CCRB on July 18, 2013 (Enc. M1 – M3).

Lt. Ryan was only present for the August 23, 2012 incident date, and this was his only time being present at § 87(2)(b) in Brooklyn.

On August 2, 2012, Det. Reynolds affected arrests at § 87(2)(b) in Brooklyn, and subsequently submitted a form to Lt. Ryan to close the case, thus taking the location off of the kite list. On August 22, 2012, Lt. Ryan reviewed the case, and other complaints generated for the location. On August 23, 2012, at 2:35 p.m., Lt. Ryan went to inspect the location to ensure that it should be removed from the kite list. Lt. Ryan, Det. Lavelle, and Det. Friendly were the only officers to respond to § 87(2)(b) § 87(2)(b).

Lt. Ryan believed the location to be abandoned, due to the outward physical appearance which included boarded up doors and windows and hoards of trash and debris. Additionally, a community member who had complained of the location informed Lt. Ryan that the house was abandoned and no individuals were supposed to be inside. Lt. Ryan did not see any postings on the location, including a Vacate Order by the Department of Buildings. Lt. Ryan has not spoken to the landlord directly and has no knowledge of who owns the location (He noted that it is common for squatters to move into a house after it has been foreclosed on in that area).

Upon arriving at the location, Lt. Ryan was flagged down by an unnamed, unidentified female who appeared to live in the neighborhood of § 87(2)(b). She informed Lt. Ryan that "crack heads" would commonly go in and out of the back of the building. She was concerned because they were smoking in there and she has young children who live in the neighborhood.

Det. Friendly and Lt. Ryan went around to the back of the house. Det. Lavelle stayed in the front of the house to perform security. Upon arriving at the back of the house, Lt. Ryan noticed that the back door had also been knocked in and garbage was strewn around the surrounding area. Lt. Ryan and Det. Friendly entered the building through the back door, walked up a couple of steps, and immediately observed § 87(2)(b) standing in the common area hallway. Lt. Ryan and Det. Friendly never entered a private apartment inside of § 87(2)(b).

§ 87(2)(b) had a crack pipe in her hand and appeared to be smoking crack. Lt. Ryan and Det.

Friendly handcuffed § 87(2)(b) and brought her to the front of the building. Lt. Ryan and Det. Friendly had to walk § 87(2)(b) down the steps, and around the side of the building to get her to the front where their vehicle was parked. No officer pushed § 87(2)(b) and she did not fall on the steps. § 87(2)(b) did not complain of injuries or have any visible physical injuries.

Det. Lavelle never came to the back of the house to partake in § 87(2)(b)'s apprehension, and Lt. Ryan did not observe Det. Lavelle use physical force against § 87(2)(b). Lt. Ryan did not kick down a door or observe any other officer do so.

Aside from Det. Friendly and Lt. Ryan, no officer entered the building. No search of the premises occurred, including the emptying of a garbage can. On this day, Lt. Ryan was dressed in plainclothes with his shield around his neck. He did not hear § 87(2)(b) request his, or any other officers, name or shield number, and he did not hear any officer refuse to provide their information. Lt. Ryan did not flip his badge away from § 87(2)(b) and did not observe any other officer do so.

Lt. Ryan was informed that a search warrant for this location was obtained on § 87(2)(b) and executed on August 29, 2012, though he was unaware of this prior to his CCRB interview and stated that it did not impact his decision to visit § 87(2)(b) on this day.

Subject Officer: DET. JENNIFER LAVELLE

- *Det. Lavelle was § 87(2)(b) old at the time of this incident. She is a 5'8" tall, 150-pound white female with brown hair and brown eyes. Since this incident, Det. Lavelle has been promoted to the rank of sergeant.*
- *On August 2, 2012, Det. Lavelle worked from 3:27 p.m. to 11:59 p.m., with Det. Friendly in the NBBN unmarked chase auto vehicle, #§ 87(2)(b). Both officers were in plainclothes.*
- *On August 23, 2012, Det. Lavelle worked from 10:27 a.m. to 7 p.m. in the leader auto, an unmarked black Altima #§ 87(2)(b) with Det. Friendly and Lt. Ryan. She was in plainclothes.*
- *Det. Lavelle was not present for the September 4, 2012, and September 25, 2012, incidents.*

Memo Book

Det. Lavelle had memo book entries for all of the incidents in which she was present (Enc. Q1 – Q11). On August 2, 2012, at 6:20 p.m., one individual was placed under arrest at § 87(2)(b) in Brooklyn. At 6:30 p.m., a second individual was placed under arrest.

On August 23, 2012, at 2:35 p.m., Det. Lavelle was en route to the vicinity of § 87(2)(b) in Brooklyn. At 2:45 p.m., she arrived at § 87(2)(b) regarding kite location § 87(2)(b). At 2:50 p.m., § 87(2)(b) was placed under arrest inside of § 87(2)(b) for § 87(2)(b).

On September 4, 2012, at 6:50 p.m., Det. Lavelle was en route to 407 Van Siclen Avenue. At 7 p.m., Det. Lavelle was en route to § 87(2)(b). At 7:15 p.m., Det. Lavelle was en route to § 87(2)(b).

CCRB Statement

Det. Lavelle was interviewed at the CCRB on July 11, 2013 (Enc. R1 – R4). § 87(2)(g)

On August 2, 2012, at 6:20 p.m., Sgt. White and Det. Reynolds informed Det. Lavelle and Det. Friendly that they were responding to § 87(2)(b) in Brooklyn, to check on the status of a kite location. Det. Lavelle is familiar with the building's kite history, and believed the building to be abandoned due to the outward physical appearance (padlocked doors, boarded up windows, strewn garbage, etc.), but has not personally conducted database inquiries as to the status of the building. Det. Lavelle was informed by an officer that the landlord calls in narcotic complaints to his own building.

Det. Lavelle and Det. Friendly arrived at § 87(2)(b) in Brooklyn, to determine whether the responding officers needed assistance. Upon arriving, Sgt. White and Det. Reynolds were in front of

the location, walking § 87(2)(b) to the street in handcuffs. Det. Lavelle did not see where the officers went inside of the building, or whether they conducted a search inside of the building. Det. Lavelle confirmed that the officers did not need assistance, as they were only waiting for the prisoner van. Det. Lavelle did not hear § 87(2)(b) request an officers' name and shield number, she did not observe an officer flip their shields away from § 87(2)(b) and she did not refuse to provide her own information. Det. Lavelle left the location and did not observe the context of the second arrest, but was informed of it later.

On August 23, 2012, at 2:35 p.m., Det. Lavelle, Det. Friendly, and Lt. Ryan arrived at § 87(2)(b) in Brooklyn, at the request of Lt. Ryan, who was determining whether to conclude the kite case on the location.

Upon arriving, an unidentified female neighbor informed Lt. Ryan that people had been going to the back of the building. Det. Lavelle stayed at the front of the building while Lt. Ryan and Det. Friendly walked around the side of the building to the back. After waiting a couple of minutes, Det. Lavelle walked around to the back of the building to observe that a wooden door was off of its hinges and she could see into the building. Det. Lavelle did not kick down or forcibly breach any door on this day, nor did she see or hear any other officer do so.

Det. Lavelle observed Det. Friendly and Lt. Ryan handcuffing § 87(2)(b) on the ground level in the common area hallway. Det. Lavelle did not observe an officer enter a private apartment within the building or conduct a search of any kind within the location. Det. Lavelle was unaware of any search warrant pertaining to § 87(2)(b) and this had no impact on the officers' decision to respond to the location.

Once § 87(2)(b) was handcuffed, she was compliant in being led out of the building. Det. Lavelle did not recall § 87(2)(b) or the officers walking down steps, and § 87(2)(b) was not pushed by an officer in any way. § 87(2)(b) did not complain of an ankle injury, nor did she appear to be injured.

At no point during either encounter did Det. Lavelle conduct a strip search of § 87(2)(b). Det. Lavelle reiterated that she did not even interact with § 87(2)(b) on September 4, 2012, the date in which the strip search allegedly occurred.

Subject Officer: PO JOHN SLAVINSKY

- *PO Slavinsky was § 87(2)(b) old at the time of this incident. He is a 5'8" tall, 180-pound, white male with blonde hair and blue eyes.*
- *PO Slavinsky worked from 3:27 p.m. on August 2, 2012, to 6 a.m. on August 3, 2012, as a prisoner van operator. He does not recall who he was working with. He was dressed in plainclothes.*
- *On September 25, 2012, PO Slavinsky worked from 2:27 p.m. to 11 p.m. as the arresting officer for NBBN. He was working in plainclothes and assigned to an unmarked white minivan with Det. Friendly and Sgt. White.*
- *PO Slavinsky was not present for the August 23, 2012, and September 4, 2012, incident.*

Memo Book

PO Slavinsky had memo book entries for all of the incidents in which he was present for (Enc. S1 – S8). On August 2, 2012, at 6:20 p.m., PO Slavinsky picked up one female from § 87(2)(b) in Brooklyn. At 8:45 p.m., one male was picked up at § 87(2)(b) in Brooklyn. At 9 p.m., PO Slavinsky arrived at the 75th Precinct.

On September 25, 2012, at 8:45 p.m., § 87(2)(b) and § 87(2)(b) were placed under arrest at § 87(2)(b) in Brooklyn, for § 87(2)(b).

OLBS Arrest Report

PO Slavinsky was assigned the arrest reports for § 87(2)(b) s and § 87(2)(b) s September 25, 2012, arrests (Enc. T1 – T4). They were arrested inside of a hallway within § 87(2)(b) an abandoned building. They were both arrested for § 87(2)(b). § 87(2)(b) had used crack at the time of her arrest. § 87(2)(b) and § 87(2)(b) reported that their home address was § 87(2)(b), in Brooklyn.

CCRB Statement

PO Slavinsky was interviewed at the CCRB on July 18, 2013 (Enc. U1 – U4).

On August 2, 2012, at 6:20 p.m., PO Slavinsky arrived at § 87(2)(b) in Brooklyn, to transport a prisoner. He was unable to recall which officers beckoned him to the scene, which officers were in the prisoner van, and which officers were present at the location when he arrived.

PO Slavinsky waited in the van and did not enter § 87(2)(b) nor did he see officers enter the private apartments within § 87(2)(b). PO Slavinsky does not recall the context of § 87(2)(b) arrest, as it was approximately two hours later and he may not have been present for it. During his ten minutes at the location, PO Slavinsky did not hear § 87(2)(b) ask for an officer's name or shield number, and he did not see or hear an officer refuse to provide the information. PO Slavinsky did not refuse to provide his name or shield to § 87(2)(b).

On September 25, 2012, at 8:45 p.m., PO Slavinsky, Det. Friendly and Sgt. White were conducting a routine patrol in the vicinity of § 87(2)(b) in Brooklyn. PO Slavinsky reiterated the details of the location's history, his belief that it was abandoned and uninhabited, and acknowledged that he did not personally research the status of the building prior to arriving. PO Slavinsky added that officers on his team have continually searched for the owner of the property using extensive database searches, which have failed to reveal a current owner.

Upon arriving, PO Slavinsky observed that the previously boarded up door had been broken down and deformed so any bystander could clearly see into the common area of the building. From the curb, which is approximately 20 feet from the front door of the apartment building, PO Slavinsky could see an individual, later identified as § 87(2)(b) standing inside of the building's common area near the threshold of the door.

PO Slavinsky approached the front door, identified himself, and informed § 87(2)(b) that he was at the location to check on the building to make sure no one was vandalizing it. PO Slavinsky noted that § 87(2)(b) was very compliant and he had no bad interactions with her. However, she did have a straw with crack residue on it, which she dropped once he identified himself. PO Slavinsky proceeded to engage in a 5 to 10 minute discussion with § 87(2)(b) about narcotics complaints in the area prior to placing her under arrest. PO Slavinsky recovered the crack straw.

§ 87(2)(b) was standing inside of one of the rooms on the first floor. All of the doors were opened and he could see a crack pipe in plain view on the counter in the private room. In this same room, there was a TV that was turned on. PO Slavinsky asked § 87(2)(b) if he lived in the apartment, and § 87(2)(b) stated that he did not, and he was only visiting § 87(2)(b). Given that § 87(2)(b) was in an apartment that was not his or § 87(2)(b)'s, and there was crack paraphernalia in plain view, he was also arrested.

PO Slavinsky did not forcibly breach or open any door, and no property damage occurred as a result of the officers' presence. § 87(2)(b) requested PO Slavinsky's name and shield number, and PO Slavinsky wrote it down for § 87(2)(b) on a scrap piece of paper. Additionally, PO Slavinsky provided § 87(2)(b) with arrest paperwork that had his name on it. PO Slavinsky did not hear § 87(2)(b) request any other officers' information, and he did not hear or see an officer refuse to provide their information.

Witness Officer: DET. RONALD REYNOLDS

- Det. Reynolds was § 87(2)(b) old at the time of this incident. He is a 5'10" tall, 210-pound white male who is bald and has green eyes.
- On August 2, 2012, Det. Reynolds worked from 3:27 p.m. to 12:00 a.m., as the arresting officer for NBBN. Det. Reynolds was in plainclothes and was working with Sgt. White in an unmarked white minivan.
- On September 25, 2012, Det. Reynolds worked from 2:27 p.m. to 11 p.m. as a NBBN chase car with PO Charles Ingrassia. Both officers were in plainclothes and assigned to a grey sedan, #§ 87(2)(b).
- Det. Reynolds was not present for the August 23, 2012 or September 4, 2012 incidents.

Memo Book

Det. Reynolds had memo book entries for the incident dates in which he was present (Enc. N1 – N7). On August 2, 2012, at 6:20 p.m., Det. Reynolds placed one individual under arrest at § 87(2)(b) in Brooklyn.

On September 25, 2012, at 8:45 p.m., two individuals were placed under arrest inside of § 87(2)(b), in Brooklyn.

OLBS Arrest Report

Det. Reynolds prepared the paperwork for § 87(2)(b)'s August 2, 2012 arrest (Enc. O1 – O2). On the arrest report, it noted that § 87(2)(b) was arrested for § 87(2)(b) in the hallway of § 87(2)(b) in Brooklyn, which is an abandoned building. § 87(2)(b)'s address is listed as § 87(2)(b), in Brooklyn. He noted that at the time of her arrest, she had been using crack.

CCRB Statement

Det. Reynolds was interviewed at the CCRB on May 29, 2013 (Enc. P1 – P4).

On August 2, 2012, at approximately 6:20 p.m., Det. Reynolds and Sgt. White arrived at § 87(2)(b) in Brooklyn, after Det. Reynolds was assigned the kite location on August 1, 2012. The kite complaints that generated the case were filed on July 12, 2012, noting that narcotics usage and sales were taking place inside of the abandoned building. Due to the flux of the complaints and lapse of time, Det. Reynolds arrived at the location without first conducting database inquiries or research on the building.

The boarded up windows, surrounding property damage, and poor state of the property confirmed the complainant's report that the building was abandoned. It appeared that the storm door to the house had been pried open, so Det. Reynolds approached the house to determine whether it had been broken into. When Det. Reynolds approached the door and opened it wider, he observed § 87(2)(b) standing in the common area hallway of the building. § 87(2)(b) began walking towards Det. Reynolds and Sgt. White, and when Det. Reynolds displayed the shield around his neck, § 87(2)(b) opened her hand and dropped a crack pipe onto the floor. Det. Reynolds described the crack pipe as a clear and metal pipe with burn marks on the inside and a screen in one end. After § 87(2)(b) dropped the crack pipe, she remained calm and told the officers she was looking for someone as she walked towards them as if nothing had happened. Det. Reynolds walked into the common area to retrieve the crack pipe. Sgt. White may have entered the building, but did not enter any of the private apartments within the building.

Det. Reynolds jiggled the handle to a door at the end of the hallway. The door did not have a number on it and was locked. This further caused Det. Reynolds to believe that the building was abandoned and had been secured. While placing § 87(2)(b) in handcuffs, she informed Det. Reynolds that she was homeless.

Det. Reynolds went upstairs to see if the house was truly abandoned and to see if anyone was

upstairs. Det. Reynolds could not recall if the upstairs was a large open space or if there were rooms. However, there was garbage all over the floor. Det. Reynolds did not go anywhere on the second floor and immediately went back to the first floor. While inside the location Det. Reynolds did not see a bathroom or kitchen area. Before Det. Reynolds left, he closed the interior door and attempted to close the storm door as well. Det. Reynolds was inside the house for approximately five minutes. Det. Reynolds called the prisoner van to the location to pick up § 87(2)(b). However, Det. Reynolds could not recall what officers were in the prisoner van. No other officer entered the location besides Det. Reynolds and Sgt. White. § 87(2)(b) was not charged with trespassing because there was no complainant, and therefore the case would have been dropped.

On September 25, 2012, at 8:45 p.m., Det. Reynolds and PO Ingrassia responded to § 87(2)(b) in response to a radio transmission stating that two people were placed under arrest at the location. Det. Reynolds does not recall interacting with § 87(2)(b) on this day or any occurrences at § 87(2)(b). Det. Reynolds did not enter § 87(2)(b) breach a door, observe another officer breach a door, or refuse to provide their name and shield numbers to § 87(2)(b).

Officers Not Interviewed

Det. Dennis Friendly and PO James Famiano were not interviewed regarding the August 23, 2012, and September 4, 2012, incident dates. They were assigned the arrests of § 87(2)(b) and § 87(2)(b) on the respective incident dates.

OLBS Reports

The official OLBS report for § 87(2)(b) s August 23, 2012, arrest was unavailable, as the arrest was subsequently sealed. The Booking and Arraignment Disposition System (BADs) print-out noted that Det. Friendly arrested § 87(2)(b) for § 87(2)(b). Her address is listed as § 87(2)(b) in Brooklyn (Enc. V1 – V4).

The OLBS reports for § 87(2)(b) and § 87(2)(b) § 87(2)(b) stemming from the September 4, 2012, incident dates were prepared by PO Famiano (Enc. W1 – W10). All three individuals were arrested inside of an apartment located within § 87(2)(b) in Brooklyn, which is an abandoned building. § 87(2)(b) s and § 87(2)(b) s home addresses were listed as § 87(2)(b) § 87(2)(b) and they were arrested for § 87(2)(b).

Medical Records

§ 87(2)(b) visited § 87(2)(b) on § 87(2)(b). She complained of back pain and right ankle pain, noting that approximately six months ago (March 2012) her back pain increased. § 87(2)(b) stated that she slipped a week ago, causing pain to her right ankle and foot. She was ultimately diagnosed with bilateral radiating leg pain. Fractures and dislocations were ruled out. It is noted that § 87(2)(b) has a history of drug use, including cocaine. § 87(2)(b) was also treated at § 87(2)(b), in Brooklyn, in § 87(2)(b) for follow-up treatment regarding pain management and an unrelated health issue. Originally, § 87(2)(b) listed her address as § 87(2)(b), in Queens Village, and during a latter visit she listed her address as § 87(2)(b) in Brooklyn.

NYPD Documents

Narcotics Complaint Report

On July 12, 2012, a Narcotics Borough Brooklyn North Complaint Report was generated for § 87(2)(b) (Enc. X1 – X2). The report was generated due to an anonymous female caller reporting that narcotics sales and usage were ongoing at § 87(2)(b) in Brooklyn, which she identified as a vacant house. This same day, a second female caller contacted the police and informed them that the front door was open to an abandoned, boarded up house, and that the people inside of the location just made another sale. At the time of the call, she reported seeing five males, one of whom was dark skinned and

wearing white shorts, another of whom was wearing black shirts, and a third, who was possibly a Hispanic male.

NBBN Tactical Plans and Movement Logs

On August 2, 2012, Sgt. White and Det. Reynolds were the NBBN Team Leader and assigned to a white Dodge. Det. Friendly and Det. Lavelle were working as NBBN Team 1 and assigned to a gray Honda. One tactic discussed at the TAC meeting was wearing a shield that is visible to the public. According to the movement log, the Team Leader (Sgt. White and Det. Reynolds) was traveling with Team 1 (Det. Friendly and Det. Lavelle).

On August 23, 2012, Lt. Ryan, Det. Lavelle, and Det. Friendly were the NBBN Team Leader and assigned to a black Altima. § 87(2)(b) was included in the list of locations to be visited and was assigned kite # § 87(2)(b). According to the movement log, Det. Sekou Bourne, Det. Joseph Hernandez, and Det. Edward Meija were working under Lt. Ryan.

On September 4, 2012, Sgt. White and PO Famiano were operating as the Team Leader. According to the Movement Log, PO Famiano, Det. Hugo Ortega, Det. Emrah Ates, and Det. Lafortune were all operating under Sgt. White's command at the time of this incident.

On September 25, 2012, Sgt. White, PO Slavinsky, and Det. Friendly were working in the Leader Car, while Det. Reynolds and PO Ingrassia were the Chase Car and Det. Lafortune and Det. Serrano were operating the prisoner van. According to the Movement Log, Sgt. White, PO Slavinsky, Det. Friendly, Det. Ingrassia, Det. Serrano and Det. Reynolds were all operating with Sgt. White at the time of this incident (Enc. Y1 – Y27).

Command Log

The command log from September 25, 2012, the date in which § 87(2)(b) contended that she was injured, lists her condition as "apparently normal." The command log reiterated that § 87(2)(b)'s address was § 87(2)(b) in Brooklyn (Enc. Y28; Y39).

Search Warrant Inquiry

A search conducted by the CCRB's Monitoring and Analysis System (MAS) determined that Search Warrant # § 87(2)(b) was issued for § 87(2)(b) in Brooklyn, on § 87(2)(b), and executed on § 87(2)(b). The warrant was sought by PO Michael Melendez of the 44th Precinct and issued by the Honorable § 87(2)(b) in New York County.

Other Evidence

City of New York Department of Housing Preservation and Development

On October 23, 2012, contact was established with Inspector Dominquez from NYC Department of Housing Preservation and Development (HPD). Inspector Dominquez confirmed that § 87(2)(b) has received multiple complaints, but HPD has not issued a vacate order on the location. Inspector Dominquez stated that the NYC Department of Buildings or FDNY could issue a vacate order for the location without HPD knowing. Inspector Dominquez provided documentation to the CCRB, including a Violation Summary Report for all of the first floor violations received dating back to June 2011, which consists of 42 violations (Enc. Z17 – Z24). Some of the violations include orders to repair or replace the front door lock, the front entrance stoop, the front entrance storm door, the front entrance door (non-storm), the door and lock at the back of the house, replace the missing stairs,

New York City Department of Buildings (NYC DOB) Documents

The NYC DOB listed a number of violations for § 87(2)(b) including three violations which were classified as "Class 1 – Immediately Hazardous." The owner of the property is listed as § 87(2)(b). On August 8, 2012, the building was inspected noting that the building appears to be vacant and the foundation of the building is sinking into the ground, leaving the building unstable (Enc. Z6 – Z16).

FDNY Documents and Correspondence

On February 13, 2013, contact was established with Mr. Gregorie at FDNY, who indicated that there is no vacate order for § 87(2)(b) in Brooklyn (Enc. CC1). This same day, § 87(2)(b), the Deputy Chief Inspector of the Bureau of Fire Prevention supplied the CCRB with a written statement that there is no vacate order for § 87(2)(b) in Brooklyn.

Inquiries of Location

A **Google Maps** search of the location § 87(2)(b) in Brooklyn, renders a photo of a two story house with a visible basement behind a wrought iron gate. The windows of the house are boarded up (Enc. D1). A search of **CTS** indicates that over the past four years, dating back to September 2009, three CCRB complaints with the incident location being the first floor of § 87(2)(b) in Brooklyn, have been filed. In **CCRB case** § 87(2)(b) an individual by the name of § 87(2)(b) contends that his residence is the first floor of § 87(2)(b) in Brooklyn (Enc. Z3 – Z5). A search of **NYC GovMap** lists § 87(2)(b) as the current owner (Enc. Z1 – Z2). A search of **Lexis Nexis** indicated that § 87(2)(b) has lived at § 87(2)(b) from 1993 to the current date (Enc. DD1).

Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of June 26, 2013, with regard to the incident (Enc. AA1).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) § 87(2)(b)
[REDACTED].

Subject Officers CCRB History

- Lt. Patrick Ryan has been a member of the service for 19 years and there are no substantiated CCRB allegations against him (Enc. A4 – A5).
- Sgt. Michael White has been a member of the service for 18 years and there is one substantiated CCRB allegation against him (Enc. A1 – A3):
 - In CCRB case 201113929, the CCRB Board substantiated an entry and search allegation against Sgt. White and recommended charges. The NYPD has not yet reached a disposition.
- Det. Jennifer Lavelle has been a member of the service for nine years and there is one substantiated CCRB allegation against her (Enc. A6 – A7):
 - In CCRB case 201001417, the CCRB Board substantiated a refusal to provide name and/or shield number against Det. Lavelle and recommended Charges. In July 2011, the NYPD instituted Instructions.
- PO John Slavinsky has been a member of the service for eight years and there are two substantiated allegations against him (Enc. A8):
 - In CCRB case 200901128, the CCRB Board substantiated retaliatory arrest and search

allegations against PO Slavinsky and recommended Instructions. In July 2010, the NYPD instituted Instructions for both allegations.

Conclusion

Identification of Subject Officers

Sgt. White and Lt. Ryan acknowledged their role in the respective incident dates. § 87(2)(g)

Det. Lavelle was identified via the August 23, 2012, NBBN Tactical Plan as the only female officer working with NBBN at the time of the incident. § 87(2)(b) described Det. Lavelle as a 5'11" tall, white female and Det. Lavelle's pedigree information indicated that she is a 5'8" tall white female. Det. Lavelle confirmed her presence at the location and her interaction with § 87(2)(b) § 87(2)(g)

§ 87(2)(b) described the officer who kicked down § 87(2)(b)'s bedroom door as a tall, muscular white male with short dark hair. The only two white male officers who were present were Det. Reynolds, a 5'10" tall bald male, and PO Slavinsky, a 5'8" tall blonde male. During his CCRB statement, PO Slavinsky acknowledged walking into § 87(2)(b)'s room and interacting with him, whereas Det. Reynolds had minimal involvement with § 87(2)(b) if any. § 87(2)(g)

§ 87(2)(b) alleged that the same female officer from the August 23, 2012 incident, who was identified as Det. Lavelle, strip-searched her on September 4, 2012. Det. Lavelle denied interacting with § 87(2)(b) or responding to § 87(2)(b) on September 4, 2012, and contended that she was conducting controlled narcotics buys with a separate team. Det. Lavelle's memo book places her within 15 blocks of § 87(2)(b) at the time of this incident. § 87(2)(g)

§ 87(2)(b) alleged that, on each incident date, she asked every officer present for their name and badge numbers, and all officers refused to verbally provide her with the information and then flipped their badges over. During the four incident dates, over 17 officers interacted with § 87(2)(b) and of the officers interviewed, no officer acknowledged refusing to provide their information to § 87(2)(b) § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(b) alleged that she asked officers during all four incident dates for a search warrant, but they consistently refused to show her a warrant. August 23, 2012 was the only date in which an executable search warrant for the location existed; however, the officers who arrived at § 87(2)(b)'s house on this day were unaware of the search warrant, as it was requested by a separate command for a separate investigation. § 87(2)(g)

During the August 2, 2012, incident, § 87(2)(b) alleged that she was frisked and searched by Det. Lavelle. § 87(2)(g)

On September 25, 2012, § 87(2)(b) alleged that he asked Det. Lavelle for his arresting officer's name, and she informed him that he would find out at the precinct. § 87(2)(g)

Investigative Findings and Recommendations

Allegation A: Abuse of Authority – On August 2, 2012, September 4, 2012, and September 25, 2012, Sgt. Michael White participated in the entry and search of § 87(2)(b) in Brooklyn.

§ 87(2)(g)

Regarding the August 2, 2012 incident, § 87(2)(b) alleged that Sgt. White and officers followed § 87(2)(b) into her private apartment and likely searched her bedroom and kitchen, though she only heard this and did not observe the search firsthand. § 87(2)(b) contended that he was running errands and § 87(2)(b) was already outdoors and handcuffed by the time he returned. Sgt. White and Det. Reynolds alleged that § 87(2)(b) had been smoking crack in plain view while standing in the common-area hallway. Both officers contended that they handcuffed her in the common area and denied entering § 87(2)(b)'s private dwelling. PO Slavinsky and Det. Lavelle arrived at the location at a later point and did not see officers enter or search § 87(2)(b)'s apartment.

§ 87(2)(b) alleged that on September 4, 2012, § 87(2)(b) left the apartment momentarily and when he returned, Sgt. White and officers entered the apartment behind him. § 87(2)(b) alleged that officers kicked down the door to gain entry, and § 87(2)(b) stated that he did not hear anything prior to the officers' entry, including a knock. Sgt. White was unable to recall the circumstances of the September 4, 2012 incident, but denied entry § 87(2)(b)'s private dwelling.

§ 87(2)(b) alleged that on September 25, 2012, she unlocked the gate for Sgt. White, who subsequently entered her apartment without permission. § 87(2)(b) later recanted and stated that four officers kicked in the basement door, confiscated her keys, and unlocked the gate so that Sgt. White could enter the apartment. § 87(2)(b) confirmed that officers used § 87(2)(b)'s keys to allow Sgt. White to enter the apartment. Sgt. White was unable to recall the circumstances of § 87(2)(b)'s arrest, and PO Slavinsky alleged that § 87(2)(b) was smoking crack in plain view while standing in a common area hallway. Although Sgt. White denied entering § 87(2)(b)'s private apartment, PO Slavinsky stated that the front door of the private apartment was open, allowing him to observe § 87(2)(b) inside of the apartment with a crack pipe, causing PO Slavinsky to enter to affect § 87(2)(b)'s arrest.

Sgt. White consistently alleged that § 87(2)(b) was arrested in the common-area hallway each time; whereas § 87(2)(b) consistently contended that she was in the confines of a private dwelling each time the officers illegally entered. PO Slavinsky was the only officer who acknowledged entering the private apartment to affect the arrest of § 87(2)(b) who purportedly was a non-resident with narcotics in plain view. However, no officer was able to corroborate PO Slavinsky's contention of the circumstances preceding the entry and the OLBS report from this incident states that the arrests occurred in the common-area hallway. Aside from the varying accounts of the entry, the visible condition of the building would lead an objective person to believe that the location is abandoned. However, documents provided by NYC Department of Buildings, FDNY, and the NYC Department of Housing Preservation suggest that the building is not legally abandoned. § 87(2)(g)

§ 87(2)(g)

Allegation B: Abuse of Authority – On August 23, 2012, Lt. Patrick Ryan participated in the entry

and search of § 87(2)(b) in Brooklyn.

§ 87(2)(b) alleged that on August 23, 2012, Lt. Ryan and officers kicked in the basement door in order to enter the apartment, and subsequently conducted a search that she heard but did not observe. Lt. Ryan and Det. Lavelle both contended that the § 87(2)(b) was smoking crack in the common-area hallway, where she was arrested, and they did not enter the private dwelling or kick down a door to gain entry to the building.

Since this incident, Lt. Ryan has retired from the NYPD. § 87(2)(g)

Allegation C: Abuse of Authority – On August 2, 2012, August 23, 2012, September 4, 2012, and September 25, 2012, officers refused to provide their names and shield numbers to § 87(2)(b) § 87(2)(b) and § 87(2)(b)

§ 87(2)(b) alleged that on all four incident dates, she requested the name and shield numbers of every single officer present, but each officer responded by ignoring her or turning their badges away from her. § 87(2)(b) did not hear § 87(2)(b) request an officer's information, however he alleged that he personally requested an officer's information on two occasions and was denied the information. § 87(2)(b) was unable to chronicle the occurrences of each officer and each request, and spoke in general terms. Of the 17 or more officers who arrived at § 87(2)(b) among the incident dates, the five officers interviewed denied refusing to provide their information, or hearing another officer do so. Sgt. White vehemently contended that § 87(2)(b) knows his name very well due to their multiple interactions, whereas PO Slavinsky contended that she did in fact ask for the information, and he subsequently wrote it down for her.

§ 87(2)(g)

Allegation D: Abuse of Authority – On August 23, 2012, Det. Jennifer Lavelle damaged § 87(2)(b)'s property.

Allegation G: Abuse of Authority – On September 25, 2012, PO John Slavinsky damaged § 87(2)(b)'s property.

§ 87(2)(b) alleged that on August 23, 2012, Det. Lavelle damaged § 87(2)(b)'s basement entrance door by kicking it down. § 87(2)(b) alleged that on September 25, 2012, PO Slavinsky kicked in § 87(2)(b)'s apartment door and the door to § 87(2)(b)'s room. All officers interviewed denied kicking down doors or observing another officer do so.

§ 87(2)(b) did not have photos of the property damage. According to officer statements and a compilation of documents from NYC HPD and NYC DOB, § 87(2)(b) windows, basement, rear and front doors were damaged prior to the officers' arrival. § 87(2)(g)

Allegation E: Force – On August 23, 2012, Det. Jennifer Lavelle used physical force against § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) filed this complaint on September 13, 2012, stating that an officer dragged her down the stairs. During a phone statement on September 17, 2012, § 87(2)(b) alleged that she twisted her ankle walking down the stairs and did not get medical treatment for her injury. During her CCRB interview on September 27, 2012, § 87(2)(b) alleged that she accidentally slipped. During two follow-up phone calls on February 25, 2013, and June 19, 2013, § 87(2)(b) alleged that Det. Lavelle pushed her down the stairs, causing her to sprain her ankle and get medical treatment from § 87(2)(b). § 87(2)(b)'s medical records from § 87(2)(b) noted that she had been experiencing back pain for approximately six months, and she was diagnosed with radiating leg pain. Det. Lavelle denied using any variation of physical force against § 87(2)(b) and all officers interviewed denied observing Det. Lavelle do so.

§ 87(2)(g)

Allegation F: Abuse of Authority – On September 4, 2012, Det. Jennifer Lavelle strip-searched

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) During § 87(2)(b)'s CCRB statement, she alleged that Det. Lavelle made her shake out her brassiere, an allegation that she did not mention upon filing her complaint, or during her initial phone statement. On June 19, 2013, during a follow up conversation, § 87(2)(b) alleged that an officer made her pull her pants down to her mid-thigh area, thus exposing her undergarments. Det. Lavelle denied interacting with § 87(2)(b) on September 4, 2012, or responding to § 87(2)(b) and she denied conducting a strip-search of § 87(2)(b) at any point.

At the time of this incident, Det. Lavelle's memo book placed her within 15 blocks of § 87(2)(b)

conducting controlled narcotics buys, § 87(2)(g)

Team: 2

Investigator: _____
Signature Diana P. Murray Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date